



Notification Waiver Determination

Coles - supermarket site in Plainland, Qld

Acquisition	Coles Supermarkets Australia Pty Ltd (CSA) applied for a notification waiver in respect of its proposed acquisition of a leasehold interest in a single lot (Lot 2 on SP180792) (the Target Site) in a new neighbourhood centre adjacent to the existing Plainland Plaza Shopping Centre, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	9 October 2026

Parties to the Acquisition	Coles Group Limited (Coles) is an Australian public company (ASX: COL) that primarily operates: • supermarkets nationwide through CSA; and • retail liquor stores nationwide, trading under the Liquorland, Liquorland Warehouse and Liquorland Cellars brands. Coles also has a property development arm, Coles Group Property Developments Ltd (CGPD), that buys land and constructs shopping centres, standalone supermarkets and / or liquor outlets and then sells these completed sites to third party buyers. The Lessor, Consprop Projects Pty Ltd, is a wholly owned subsidiary of Consolidated Properties Group Pty Ltd, which is an Australian development company with experience developing high quality residential, commercial and retail projects. The land subject to the Acquisition will anchor a new neighbourhood centre adjoining to the Plainland Plaza Shopping Centre in Plainland, Queensland. Plainland is a suburb approximately 75km west of the Brisbane CBD within the Lockyer Valley Region.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. Coles proposes to open a new supermarket site in Plainland, Qld, where it does not currently operate. The closest existing Coles supermarket is located more than 14km away from the Target Site

	b. there are alternative grocery retailers in and around the surrounding local areas, including Woolworths, ALDI, IGA and Drakes c. the Target Site is not currently used for grocery retailing. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds determined under section 51ABP(1) being met. The ACCC observes that the targeted notification requirements for supermarkets determined under section 51ABQ(1) may also apply, but it does not consider it necessary to reach a concluded view in this regard. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act